

TENTATIVE RULINGS

FOR: August 06, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

<https://www.zoomgov.com/j/1601453113?pwd=XpBlla8kBiCpGb0ukQyabkmCrgDdWM.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

**** All matters originally set in Dept. B will be heard in Dept. A ****

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Estate of Christopher Matthew Gillespie

19PR000227

FIRST AND FINAL ACCOUNT AND REPORT OF EXECUTOR AND PETITION FOR ITS SETTLEMENT AND FOR FINAL DISTRIBUTION

TENTATIVE RULING: In light of the Supplemental Briefing and Request for Continuance, filed July 30, 2026, the matter is CONTINUED to September 10, 2026, at 8:30 a.m. in Dept. B. By September 3, 2026, Executor and Objector shall each, or jointly, file and serve supplemental briefing as to the status of the matter.

.....

PETITIONER’S MOTION TO COMPEL KRISTINE KLUSSMAN’S FURTHER RESPONSES TO DEMANDS FOR PRODUCTION OF DOCUMENTS, SET ONE

TENTATIVE RULING: The motion is DENIED.

Petitioners Robert Stobo and Douglas Croft, as Trust Protectors of the Ashe Family Trust and Ashe Vineyard Trust, and Ashe Advisors, LLC move, pursuant to California Code of Civil Procedure sections 2017.010, 2031.210, 2031.220, 2031.230, 2031.240, and 2031.310, and California Rules of Court, rule 3.1345, for an order compelling Responding Party Kristine Klussman to provide further responses to Petitioners’ Demand for Production of Documents, Set One, Nos. 23, 55, 56, and 58-60, and to produce all responsive, nonprivileged documents and communications in her possession, custody, or control within 15 days of the hearing.

In moving to compel additional responses to requests for production of documents, and/or to compel the actual production, the moving party must “set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) “[A]bsent a claim of privilege or attorney work product, the party who seeks to compel production has met his burden of showing good cause simply by a fact-specific showing of relevance.” (*Kirkland v. Super. Ct.* (2002) 95 Cal.App.4th, 92 98.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement.” (*Glenfed Development Corp. v. Super. Ct.* (1997) 53 Cal.App.4th 1113, 1117.)

Demand for Production No. 23: The Motion is DENIED as to this Demand. Petitioners fail to show good cause for the production, particularly in light of the impact of the attorney-client privilege to the documents identified.

Petitioners contend that “Ms. Klussman placed attorneys’ fees at issue by seeking them in her First Amended Surcharge Petition. Counsel confirmed Ms. Klussman sought such attorneys’ fees as damages, not prevailing party fees.” (Separate Statement at 4:7-9.) However, Ms. Klussman clearly states that “Klussman seeks her attorney’s fees only as a prevailing party, not as damages.” (Responsive Separate Statement at 7:13-14.) This is consistent with allegations and prayers in the Surcharge Petition. (See, e.g., Surcharge Petition at ¶¶ 36, 41, and Prayer for Relief ¶ 2.)

Because an award of attorneys’ fees to the prevailing party are a form of costs of suit, a prevailing party may be obligated to support any such request at the time it is made. In this context, the Court finds that discovery into Ms. Klussman’s attorneys’ fees is premature.

Demand for Production No. 55-56: The Motion is DENIED as to these demands.

The subject demands seek “All COMMUNICATIONS between YOU and [MAX (Demand No. 55) / DAKOTA (Demand No. 56)] regarding any information ‘about the Trust’

YOU have provided to [MAX / DAKOTA], as referenced in paragraph 61 of the OBJECTION TO FAP.” (Separate Statement at 4:19-21.)

The Separate Statement does not define “the Trust.” Nor is “the Trust” defined in the OBJECTION TO FAP or to the First Amended Petition. The Court is aware there are multiple trusts referenced throughout the First Amended Petition, including the Ashe Family Trust, the modified Ashe Family Trust and the Vineyard Trust. However, it appears the parties understand “the Trust” to refer to the Ashe Family Trust and the Vineyard Trust. By way of examples: Petitioner’s Reply states “there can be no argument that communications between Ms. Klussman and her adult sons Max and Dakota regarding the Ashe Family Trust (and in particular, the Ashe Vineyard Trust) are relevant to Ms. Klussman’s claims of breach of contract and breach of fiduciary duty”; Ms. Klussman’s Opposition states, “[u]nder the Trust, the vast majority of the assets are held for the benefit of Prescott’s two children . . . while the vineyard and residence at the center of this dispute . . . , held through Ashe Vineyards, LLC, were allocated to a subtrust, the Vineyard Trust, for the benefit of Max, Dakota, and Prescott’s fiancée, Shabnam Bhaskaran. This litigation concerns only that single subtrust. The broader Ashe Family Trust, its many other holdings, and the separate, pending South Dakota proceedings are not at issue here.”

It is undisputed that the Napa County litigation concerns the “Vineyard Trust,” not the larger Ashe Family Trust, which the Court understands is being litigated in South Dakota. Therefore, communications between Ms. Klussman and her sons regarding non-Vineyard Trust matters are neither relevant nor likely to lead to the discovery of admissible information. While it is conceivable that there may be communications between Ms. Klussman and her son(s) concerning the Vineyard Trust that are discoverable, even given the privacy interests that are implicated, the demand is so broadly written, and the arguments in the Separate Statement so non-specific, it is impracticable for the Court to attempt to narrow these demands. For that reason, they are DENIED.

Demand for Production No. 58-60: The Motion is DENIED as to these Demand. Petitioners fail to show good cause for the production.

These demands seek documents “between you and DAKOTA/MAX related to any of Prescott Ashe’s Individual Retirement Accounts in which DAKOTA/MAX was named as a beneficiary.” Petitioners acknowledge, however, that they “do not contend the IRA accounts are Trust assets.” (See, *e.g.*, Separate Statement at 9:18.) “Petitioners contend the evidence to date suggests Ms. Klussman hid or failed to disclose the existence of IRA accounts from her adult son [*sic*], despite the accounts being non-Trust property in which her adult son is the named beneficiary. Evidence concerning that conduct is relevant to (1) Petitioners’ potential defenses to Ms. Klussman’s claims, and (2) Ms. Klussman’s credibility, bias, motive, and veracity in this litigation.” (Separate Statement at 9:18-24.)

First, The Court is unable to make the connection between the subject of the demands and “Petitioner’s potential defenses to Ms. Klussman’s claims.” Petitioners contend that they may be relevant to an unclean hands defense. However, “[t]he doctrine of unclean hands does not deny relief to a plaintiff guilty of any past misconduct; only misconduct directly related to the matter in which he seeks relief triggers the defense.” (*Kendall-Jackson Winery, Ltd. v. Superior Court*

(1999) 76 Cal.App.4th 970, 974.) Petitioners fail to suggest, let alone establish, that the documents sought “relate to the matter in which [Ms. Klussman] seeks relief . . .”

Second, because the documents sought by these requests are not relevant to allegations in the Surcharge Petition, in order to establish that the documents are relevant to Ms. Klussman’s credibility, Petitioners are required to make an evidentiary showing that she “hid or failed to disclose the existence of IRA accounts from her adult son(s).” (See (*Calcor Space Facility v. Super. Ct.* (1997) 53 Cal.App.4th 216, 223 [held: where good cause for production cannot be established by reference to the pleadings, the burden on the party seeking discovery is to “produce evidence from which the court may determine” that “the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence”].) Petitioners cite to no such evidence in their Separate Statement. (See Rule 3.1345.)

The evidence before the Court, although not in the Separate Statement, presented through the Declaration of Abby L. Bloetscher is conclusory and lacks foundation. Through a Supplemental Declaration, Ms. Bloetscher provides limited additional evidence and suggests the South Dakota protective order precludes her to provide more. She suggests that she should present the evidence in camera.

While the Court agrees that the credibility of a witness is always at issue at trial, the breadth of these requests would capture all communications between Ms. Klussman and her sons related to the IRA accounts – not just those which might support a challenge to Ms. Klussman’s credibility. Given the fact the IRA accounts are not Trust property, Max and Dakota’s right to privacy in their financial affairs and the lack of specificity in the Demands and evidence presented to the Court, the Court DENIES the motion as to these requests.

.....

Conservatorship of Brenda Cortes

21PR000132

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Conservators are acting in the best interest of the Conservatee. Thus, the case is set for a Review – Biennial hearing in two years, on August 08, 2028, at 8:30 a.m. in Dept. A. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

.....

Conservatorship of Cynthia Lu Pontynen

25PR000087

REVIEW – 1ST YEAR

TENTATIVE RULING: After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Accountings are hereby waived so long as the conditions under Probate Code section 2628, subdivision (a) continue to be satisfied. The matter is set for a Review – Biennial hearing in two years, on August 08, 2026, at 8:30 a.m. in Dept. B.

The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

.....

In the Matter of Lonna Lee Garza Trust

26-52729

PETITION CONCERNING INTERNAL AFFAIRS OF TRUST AND FOR ORDER:
(1) APPROVING NINTH, TENTH, AND ELEVENTH TRUST ACCOUNTS AND REPORTS
OF TRUSTEE, AND (2) APPROVING TRUSTEE COMPENSATION

TENTATIVE RULING: The petition is GRANTED, including fees as prayed.

.....

In The Matter of The Joan I. Amir Revocable Trust

26PR000139

PETITION

APPEARANCE REQUIRED. The parties shall attend prepared to discuss whether any opposition is anticipated, whether the parties intend to submit on verified pleadings and affidavits (see *Evangelho v. Presoto* (1998) 67 Cal.App.4th 615, 620), whether any discovery or other pre-hearing practice is anticipated, and whether the parties are willing to participate in informal settlement discussions or other alternative dispute resolution proceedings. Should any party desire an evidentiary hearing, the parties shall be prepared to provide the Court with an estimate for the length of the hearing, and to set the hearing on the Court's calendar. Counsel are directed to meet and confer on the foregoing issues prior to the hearing.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Andre Nave-Hernandez v. SRGA Resort, LP et al

25CV002138

[1] PLAINTIFF ANDRE NAVE-HERNANDEZ'S MOTION TO COMPEL FURTHER RESPONSES FROM DEFENDANT SRGA RESORT, LP, TO FORM INTERROGATORIES EMPLOYMENT, SET ONE, REQUEST FOR PRODUCTION, SET ONE AND SPECIAL INTERROGATORIES, SET ONE, AND FOR SANCTIONS

TENTATIVE RULING: The matter is CONTINUED to August 13, 2026, at 8:30 a.m. in Dept. A.

Plaintiff Andre Naves-Hernandez moves, pursuant to California Code of Civil Procedure Sections 2030.300, subdivision (d), 2031.310, subdivision (h), 2023.030 subdivision (a) and 2023.040, for an order compelling Defendant SRGA Resort, LP, to produce further responses to Plaintiff's Form Interrogatories, Employment, Set One., Nos. 200.1, 200.4, 200.6, 201.4, 201.5, 201.6, 207.1, 207.2, 211.1, 211.2, 214.1, 214.2, 215.1, 215.2, 216.1, Request for Production, Set

One., Nos. 1-12, and Special Interrogatories, Set One, Nos. 1-6 (collectively, the Subject Discovery).

[2] PLAINTIFF ANDRE NAVE-HERNANDEZ’S MOTION TO COMPEL FURTHER RESPONSES FROM DEFENDANT AUBERGE RESORTS, LLC, TO FORM INTERROGATORIES EMPLOYMENT, SET ONE, REQUEST FOR PRODUCTION, SET ONE, SPECIAL INTERROGATORIES, SET ONE, REQUEST FOR ADMISSIONS, SET ONE, SPECIAL INTERROGATORIES, SET TWO, FORM INTERROGATORIES GENERAL, SET ONE, AND FOR SANCTIONS

TENTATIVE RULING: The motion is GRANTED IN PART. Defendant Auberge Resorts, LLC (Auberge), is ordered to serve, no later than 14 calendar days after Notice of Entry of this order, further responses to Plaintiff’s Form Interrogatory Nos. 12.3, 12.4, 12.5, 12.7, 200.6, 207.1, 207.2, 211.1, 211.2, Special Interrogatory Nos. 1, 3-5, 12-14, 17-23, 25, and 28, and Request for Production Nos. 5-6, and 8. The Motion is DENIED in all other respects, including the request for an award of monetary sanctions. Plaintiff Andre Naves-Hernandez is directed to file and serve a Notice of Entry of the instant order.

Plaintiff Andre Naves-Hernandez moves, pursuant to California Code of Civil Procedure Sections 2030.300, subdivision (d), 2031.310, subdivision (h), 2023.030, subdivision (a), 2023.040, and 2033.290, for an order compelling Defendant Auberge Resorts, LLC (Auberge), to provide further responses to Plaintiff’s Form Interrogatories Employment, Set One, Nos. 200.1, 200.4, 200.6, 201.4, 201.5, 201.6, 207.1, 207.2, 211.1, 211.2, 214.1, 214.2, 215.1, 215.2, 216.1; Request for Production, Set One, Nos. 1-12; Special Interrogatories, Set One, Nos. 1-6; Request for Admissions, Set One, Nos. 1, 4-6, 9-18, 20-32; Special Interrogatories, Set Two, Nos. 7-29; and Form Interrogatories General, Set One, Nos. 4.1, 12.1, 12.2, 12.3, 12.4, 12.5, 12.6, 12.7, 13.1, 13.2, 17.1. Plaintiff also moves for an award of monetary sanctions against Auberge in the amount of \$1,560.00.¹

A. GENERAL MATTERS

Plaintiff first contends that Auberge’s initial responses to the subject discovery are improper because they include preliminary statements and general objections. (See Support Memo at 3:11-4:9.) Plaintiff correctly notes that the Civil Discovery Act requires a responding party to respond separately to each interrogatory and to each request for production. It does not necessarily follow, however, that the inclusion of preliminary statements and/or general objections renders an otherwise proper response improper. Plaintiff fails to cite to authority supporting the suggestion that the Court has authority to order a responding party to serve further responses simply because they have included, in responses, superfluous matters and/or objections.

Similarly, Plaintiff contends that Auberge “must withdraw its meritless objections” to the subject discovery. (See Support Memo at 4:10-11.) However, Auberge is entitled to assert whatever objections it feels are appropriate. The question of whether they are meritorious is for

¹ All subsequent statutory references herein are to the Code of Civil Procedure unless otherwise noted.

the Court, on the instant motion to compel. (See *Coy v. Superior Court* (1962) 58 Cal.2d 210, 220–221 [held: for interrogatories, the propounding party has the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, but “the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory”].) Plaintiff fails to cite to authority providing that the Court may order a responding party to withdraw objections – even meritless objections – that are timely and properly asserted.

Auberge argues in its Responsive Separate Statement, as to most of the subject discovery, that Plaintiff does not specifically contend or argue that the responses are insufficient. Rather, Plaintiff repeatedly argues that Auberge’s objections are meritless, and then states, “[p]lease withdraw your objections and confirm that your answer is complete.” (See, *e.g.*, Separate Statement at 8:9-10; see also Responsive Separate Statement at 12:6-7 [“Plaintiff does not take issue with the extent of the substantive response to this interrogatory but rather focuses on the objections that were made”].)

As noted above, the Court agrees that Auberge is not required to withdraw its objections. However, regardless of its objections, if Auberge elects to respond to an interrogatory, that response “shall be as complete and straightforward as the information reasonably available to the responding party permits . . . [and] . . . [i]f the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state . . .” (§ 2030.220.) With regard to demands for production of documents, “[a] statement that the party to whom a demand . . . has been directed will comply with the particular demand *shall state* that the production, inspection [etc.] demanded, will be allowed *either in whole or in part*, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production. (§ 2031.220. Italics added.)

In the context of the foregoing statutes, the Court shares Plaintiff’s frustration with Auberge’s failure and refusal simply to state whether it is withholding information or documents based on its asserted objections. The Court notes Auberge’s tendency to assert the same objections, without apparent discrimination, and in boilerplate fashion, to each discovery request. The Court also notes Auberge’s failure to clearly state, through its Responsive Separate Statement, whether, and if so to what extent, it is withholding information based on specific objections. Similarly, Auberge fails to state whether its answers are complete. In fact, Auberge’s Responsive Separate Statement, by asserting the validity of certain objections, strongly suggests that Auberge *is*, in fact, withholding information based on objections. (See, *e.g.*, Responsive Separate Statement at 12:11-21.)

The Court is sympathetic to Plaintiff’s argument that Auberge’s responses are evasive in light of the number and boilerplate style of objections asserted, and its unwillingness to clearly state whether the substantive responses are complete. Moreover, Auberge’s asserted justifications for many of its objections are strikingly abstract of discussion of the discovery request at issue.

Based on the foregoing, the Court, by Minute Order of July 16, 2026, continued the hearing to this date, ordered the parties to further meet and confer, and ordered Auberge “to

identify for Plaintiff, in a writing served no later than July 23, 2026, each of the subject discovery requests as to which it is withholding information and/or documents based on an objection. For each, it shall identify the objection(s) and provide a brief argument, *specific to the subject request and the specific objection*, supporting its decision to withhold the information. The parties shall then meet and confer in an attempt to resolve any disputes regarding such withholding.” The Court then “directed” the parties “to file, not later than July 31, 2026, either a Joint Supplemental Separate Statement, or respective Supplemental Separate Statements identifying, for the Court, which disputes have been resolved, and for each that remains in contention, the arguments for and against the motion to compel further production, in light of the parties’ meet and confer efforts.”

On July 31, 2026, Plaintiff filed a Separate Statement. Auberge failed to do so. Plaintiff concedes, however, that Auberge served a “Discovery Statement” on July 23, 2026. (See Separate Statement at 2:9-11.) Plaintiff did not provide the Court a copy of the Discovery Statement. The Court presumes that the Discovery Statement conforms to the Court’s July 16, 2026, mandates, as Plaintiff does not contend otherwise. Plaintiff represents that “Auberge agreed to serve verified supplemental responses to Form Interrogatory Employment No. 216.1, and Special Interrogatories (Set Two) Nos. 7, 10, and 14, and 24, and to produce the Hotel Management Agreement between Auberge and SRGA. Plaintiff withdraws these five items from the pending Motion.” (Separate Statement at 4:6-11.)

In this context, the Court proceeds to analyze the remaining requests.

B. REQUESTS FOR ADMISSIONS

“RFAs are different from other civil discovery tools such as depositions, interrogatories, and requests for documents. ‘Most of the other discovery procedures are aimed primarily at assisting counsel to prepare for trial. Requests for admissions, on the other hand, are primarily aimed at setting at rest a triable issue so that it will not have to be tried. Thus, such requests, in a most definite manner, are aimed at expediting the trial.’ [Citations.]” (*St. Mary v. Super. Ct.* (2014) 223 Cal.App.4th 762, 774-775; see also § 2033.410.) The consequence of failing to admit a provable fact is established by statute. “[i]f a party fails to admit ... the truth of any matter when requested to do so under this chapter, and if the party requesting that admission thereafter proves ... the truth of that matter, the party requesting the admission may move the court for an order requiring the party to whom the request was directed to pay the reasonable expenses incurred in making that proof, including reasonable attorney’s fees.” (§ 2033.420.)

A party moving to compel further responses to production of documents must “set forth specific facts showing good cause justifying the discovery sought by the demand.” (§ 2031.310, subd. (b)(1).) No such showing is required, however, of a party moving to compel further responses to a request for admissions. (See Code Civ. Proc. § 2033.290, subd. (b).) In this procedural regard, a motion to compel further responses to requests for admissions is governed by language identical with that providing for a motion to compel further responses to interrogatories. (See Code Civ. Proc., § 2030.300, subd. (b).) Based on the foregoing, while the party propounding requests for admissions may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to

respond remains at all times with the party resisting the request. (See *Coy v. Super. Ct.* (1962) 58 Cal.2d 210, 220–221.)

Request for Admission Nos. 1, 5-6, 9, 16-18, 20, 26-27: The Motion is DENIED as to these Requests. Auberge admitted the truth of the respective matters asserted in each. Plaintiff fails to persuade the Court that anything further is required.

Request for Admission No. 4, 10-15, 21-25: The Motion is DENIED as to these Requests. Auberge denied the truth of the respective matters asserted in each. Plaintiff fails to persuade the Court that anything further is required.

Request for Admission No. 28: The Motion is DENIED as to this Request. Auberge responded that it “is without knowledge as to the facts at issue in this Request and after making a reasonable inquiry, Responding Party can neither admit nor deny in response to this Request.” (RSS at 115:27-116:1.) The Court finds that the response complies with Section 2033.220, subdivisions (b)(3) and (c). Plaintiff fails to persuade the Court that anything further is required.

C. INTERROGATORIES

As noted above, “[o]n receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that...[a]n answer to a particular interrogatory is evasive or incomplete...[a]n exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate...[or]...[a]n objection to an interrogatory is without merit or too general.” (§ 2030.300, subd. (a).)

A party upon whom interrogatories are propounded, ‘has a general duty to conduct a reasonable investigation to obtain responsive information [citation] and must furnish information from all sources under his or her control. [Citation.]’ (*Regency Health Services, Inc. v. Super. Ct.* (1998) 64 Cal.App.4th 1496, 1504 (*Regency Health*).) “Verification of the answers is in effect a declaration *that the party has disclosed all information which is available to him*. If only partial answers can be supplied, the answers should reveal all information then available to the party. If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control.” (*Deyo v. Kilbome* (1978) 84 Cal.App.3d 771, 782 (*Deyo*). Italics added.)

Form Interrogatory No. 4.1, 12.1, 12.2, 12.6, 13.1, 13.2: The Motion is DENIED as to these interrogatories. The respective substantive answer to each appears to be complete and code compliant. Plaintiff fails to persuade the Court that it is deficient or that anything further is required.

Form Interrogatory No. 12.3: The Motion is GRANTED as to this interrogatory.

While the interrogatory asks if Auberge or anyone acting on its behalf obtained a statement, Auberge responds only that it “does not have any non-privileged statements at this time.” (RSS at 181:19-20.) The answer is non-responsive.

Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Form Interrogatory No. 12.4: The Motion is GRANTED as to this interrogatory.

While the interrogatory asks if Auberge or anyone acting on its behalf knows of any photographs, films, or videotapes, Auberge responds only that it “does not have any recordings relevant to Plaintiff’s Complaint.” (RSS at 185:1-2.) The answer is non-responsive.

Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Form Interrogatory No. 12.5: The Motion is GRANTED as to this interrogatory.

While the interrogatory asks if Auberge or anyone acting on its behalf knows of any diagram, reproduction, or model, Auberge responds only that it “does not have any diagrams, reproductions, or models relevant to Plaintiff’s Complaint.” (RSS at 187:12-13.) The answer is non-responsive.

Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Form Interrogatory No. 12.7: The Motion is GRANTED as to this interrogatory.

While the interrogatory asks if Auberge or anyone acting on its behalf inspected the scene, Auberge responds only that “[n]o reports were made to the best of Responding Party’s knowledge.” (RSS at 192:12-13.) The answer is non-responsive.

Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Form Interrogatory No. 17.1: The Motion is DENIED as to this interrogatory. Auberge provided a substantive response. (See RSS at 199:7-203:18.) Plaintiff fails to persuade the Court that anything further is required.

Form Interrogatory Nos. 200.1, 200.4: The Motion is DENIED as to these interrogatories. Each seeks information specifically relating to an “Employment relationship” between Plaintiff and Auberge. (See Declaration of Michael Seville, Exh. 1, at § 4, subd. (c)-(e), p. 2 (Seville Dec.)) Auberge responded, to each interrogatory, that “Responding Party was not Plaintiff’s employer at any time relevant to Plaintiff’s complaint.” The Court finds that this answer renders each of these interrogatories moot.

Form Interrogatory No. 200.6: The Motion is GRANTED as to this interrogatory. Auberge’s answer to the Interrogatory is non-responsive. (See Responsive Separate Statement at 13:1-10 (RSS).) Auberge fails to justify any of its asserted objections to the Interrogatory. As such, all

such objections, save those based on attorney-client privilege and/or attorney work product are overruled. (See *id.* at 14:18-28.)

Form Interrogatory Nos. 201.4, 201.5, 201.6: The Motion is DENIED as to these interrogatories. Each appears to be a follow up to Form Interrogatory Nos. 201.1, 201.2, and/or 201.3. (See, *e.g.*, Interrogatory No. 201.4 [“Was the TERMINATION or any other ADVERSE EMPLOYMENT ACTIONS referred to in Interrogatories 201.1 through 201.3 based in whole or in part on the EMPLOYEE’S job performance?”].) However, Plaintiff propounded none of Form Interrogatory Nos. 201.1, 201.2, or 201.3. (See Seville Decl., Exh. 1 at p. 3.)

Moreover, each of these interrogatories seeks information specifically relating to an “Employment relationship” between Plaintiff and Auberge. (See Declaration of Michael Seville, Exh. 1, at § 4, subd. (c)-(e), p. 2 (Seville Dec.).) Auberge responded, to each interrogatory, that “Responding Party was not Plaintiff’s employer at any time relevant to Plaintiff’s complaint.” The Court finds that this answer renders each interrogatory moot.

Form Interrogatory Nos. 207.1, 207.2: The Motion is GRANTED as to these interrogatories. Auberge’s answer to each interrogatory is non-responsive. Neither interrogatory is rendered moot by Auberge’s denial of an employment relationship. Interrogatory No. 207.1 seeks information regarding Auberge’s policies and procedures. Interrogatory No. 207.2 asks about communications between Plaintiff and Auberge. Auberge did not object on grounds of relevance, or a lack of good cause for the discovery. Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Form Interrogatory Nos. 211.1, 211.2: The Motion is GRANTED as to these interrogatories. Auberge’s answer to each interrogatory is non-responsive. “If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state . . .” (§ 2030.220; see also *Deyo, supra*, 84 Cal.App.3d 782 [“If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control.”]) Neither interrogatory is rendered moot by Auberge’s denial of an employment relationship. Auberge did not object on grounds of relevance, or a lack of good cause for the discovery. Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Form Interrogatory Nos. 214.1, 214.2, 215.1, and 215.2: The Motion is DENIED as to these interrogatories. The respective substantive answers appear to be complete and code compliant. Plaintiff fails to persuade the Court that either is deficient or that anything further is required.

Special Interrogatory No. 1: The Motion is GRANTED as to this interrogatory.

Auberge identifies an individual through its substantive response. However, it fails to address any of the remaining subparts of the interrogatory. Auberge did not object to the interrogatory on grounds that it is compound. Based on the foregoing, the Court finds that the response is insufficient and/or incomplete. “If the responding party does not have personal

knowledge sufficient to respond fully to an interrogatory, that party shall so state . . .” (§ 2030.220; see also *Deyo, supra*, 84 Cal.App.3d 782 [“If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control.”])

Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Special Interrogatory Nos. 2, 6, 8-9, 11, 15-16, 26-27, 29: The Motion is DENIED as to these interrogatories. The respective substantive answer to each appears to be complete and code compliant. Plaintiff fails to persuade the Court that any are deficient or that anything further is required.

Special Interrogatory No. 3: The Motion is GRANTED as to this interrogatory.

Auberge identifies an individual through its substantive response to Special Interrogatory No. 2. However, it fails to respond to this follow up interrogatory. Based on the foregoing, the Court finds that the response is insufficient and/or incomplete. “If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state . . .” (§ 2030.220; see also *Deyo, supra*, 84 Cal.App.3d 782 [“If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control.”])

Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Special Interrogatory No. 4: The Motion is GRANTED as to this interrogatory.

The interrogatory asks Auberge to identify documents. Auberge responded that it “is not in possession of any non-privileged documents that would be responsive to this Interrogatory.” (See RSS at 87:13-14.) The answer is non-responsive. “If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state . . .” (§ 2030.220; see also *Deyo, supra*, 84 Cal.App.3d 782 [“If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control.”])

Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Special Interrogatory No. 5: The Motion is GRANTED as to this interrogatory.

The interrogatory asks Auberge to identify documents “related to or containing any complaints.” (RSS at 89:3.) Auberge responded that it “Plaintiff [*sic*] is unaware of any complaints regarding any guests of Stanly Ranch.” (See RSS at 89:25-26.) The answer is non-responsive. “If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state . . .” (§ 2030.220; see also *Deyo, supra*, 84

Cal.App.3d 782 [“If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control.”])

Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Special Interrogatory No. 12 and 23: The Motion is GRANTED as to these interrogatories. Auberge refused to provide any substantive response to the interrogatories. (See RSS at 131:25-132:4, 154:9-10.) Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Special Interrogatory Nos. 13-14, 17-20, 22: The Motion is GRANTED as to these interrogatories. Auberge’s substantive answer to each indicates an involvement, but fails to respond to the interrogatory. Auberge fails to justify any of its asserted objections. The assertion that Auberge was not Plaintiff’s employer has no clear impact on the relevance of the interrogatory. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Special Interrogatory No. 21: The Motion is GRANTED as to this interrogatory.

The interrogatory asks Auberge to identify “all PERSONS at YOUR company who were consulted, notified, or involved in any way regarding the decision to terminate PLAINTIFF’S employment.” (RSS at 150:2-3.) Auberge responded that “[t]he individuals employed at Stanly Ranch are not and have never been Responding Party’s employees.” (See RSS at 150:14-15.) The answer is non-responsive. “If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state . . .” (§ 2030.220; see also *Deyo*, *supra*, 84 Cal.App.3d 782 [“If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control.”])

Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Special Interrogatory No. 25: The Motion is GRANTED as to this interrogatory. Auberge’s substantive response does not address the question. Auberge fails to justify any of its asserted objections. While the Court is sympathetic to Auberge’s original objection that the interrogatory is vague and ambiguous, Auberge did not renew, discuss, or argue that objection in responding to the Motion. (See RSS at 159:4-21.) As such, all of Auberge’s objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Special Interrogatory No. 28: The Motion is GRANTED as to this interrogatory. Auberge fails to respond to the interrogatory. Auberge fails to justify any of its asserted objections. The assertion that Auberge was not Plaintiff’s employer has no clear impact on the relevance of the

interrogatory. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

D. REQUESTS FOR PRODUCTION

The burden on the propounding party is higher in compelling responses to production of documents than in compelling responses to interrogatories. The motion to compel must “set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) “[A]bsent a claim of privilege or attorney work product, the party who seeks to compel production has met his burden of showing good cause simply by a fact-specific showing of relevance.” (*Kirkland v. Super. Ct.* (2002) 95 Cal.App.4th, 92 98.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement.” (*Glenfed Development Corp. v. Super. Ct.* (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is shown, the burden shifts to the party opposing the motion to justify its objection(s). (See *Kirkland v. Super. Ct.*, *supra*, at 98.)

Request for Production No. 1-4, 7, 9, 11-12: The Motion is DENIED as to these requests.

These requests each seek documents relating to Plaintiff’s employment with Auberge. However, Auberge replied that “it was not Plaintiff’s employer at any time relevant to the Complaint and as a result, Responding Party is not in possession of Plaintiff’s employment records.” (See, *e.g.*, RSS at 48:24-25.) In this context, Plaintiff fails to make a showing of good cause for the discovery.

Request for Production Nos. 5-6, 8: The Motion is GRANTED as to these Requests.

The Court finds, from a review of the operative pleadings, good cause for each request.

Auberge responded that “Responding Party cannot comply with this request because the requested documents are not in the possession, control or custody of Responding Party. A diligent and reasonable search was made to locate these documents. Responding Party was not Plaintiff’s employer at any time relevant to the Complaint. As a result, Responding Party did not directly set any policies applicable to Plaintiff’s employment.” (RSS at 58:2-6.)

Auberge’s assertion that Plaintiff was not employed by Auberge does not appear to have any bearing on the relevance of the documents sought by these requests.

“A representation of inability to comply with the particular demand . . . shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (§ 2031.230.) Auberge’s respective answers to each of these requests fail to set forth this information.

Request for Production No. 10: The Motion is DENIED as to this Request.

The Court finds, from a review of the pleadings, good cause for the documents sought by this request.

Auberge responded to the request by answering “Responding Party cannot comply with this request because the requested documents are not in the possession, control or custody of Responding Party. A diligent and reasonable search was made to locate these documents. Responding Party did not have any contracts with Robert Pausmith.” (RSS at 68:23-25.) The Court finds that a reasonable inference from the last statement is that no responsive documents ever existed in Auberge’s possession, custody, or control. The Court, therefore, finds that the response satisfies the requirements of Section 2031.230.)

Plaintiff fails to persuade the Court that anything further is required.

E. SANCTIONS

The Court finds that other circumstances make the imposition of sanctions unjust. (See §§ 2030.300, subd. (d), and 2031.310, subd. (h).)

“‘It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) ... that civil discovery be essentially self-executing. [Citation.]’ [Citation.] A self-executing discovery system is ‘one that operates without judicial involvement.’ [Citation.] Conduct frustrates the goal of a self-executing discovery system when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. [Citation.]” (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291-1292.)

The disputes presented by the instant motion reflect a failure on the part of counsel for each party to work to honor their client’s discovery obligations. None of the scores of disputes presented were difficult for the Court to resolve. None represented a balancing of competing rights. Rather, it appears to the Court that the parties ignored their respective rights and obligations under the Civil Discovery Act, and engaged in significant overreach. By its Minute Order of July 16, 2026, the Court noted that counsels’ meet and confer efforts appeared to have been perfunctory. The Court specifically noted weaknesses in the positions taken by each of the parties, and ordered the parties to meet and confer further. The parties’ failure to make any significant progress towards resolving the instant dispute, despite the Court’s guidance regarding their respective arguments, is striking.

Based on the foregoing, Plaintiff’s request for an award of monetary sanctions is DENIED.

.....
Wells Fargo Bank, N.A. v. Kenneth B Salomon

25CV002275

MOTION TO QUASH SERVICE

TENTATIVE RULING: The motion is GRANTED.

A. PROCEDURAL MATTER

Defendant Kenneth Salomon (“Defendant”) moves, pursuant to Code of Civil Procedure section 418.10, subdivision, (a)(1),² for an order quashing Wells Fargo Bank’s (“Plaintiff”) personal service of the summons and complaint on Defendant. Defendant so moves on the grounds that the Court lacks jurisdiction over Defendant because the process server left the summons and complaint at Defendant’s residence on June 7, 2026 by wedging the papers into the front door jam when Defendant was absent from his home, failing to comply with personal service requirements.

B. LEGAL STANDARD

“A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (§ 418.10, subd. (a)(1).)

“When a defendant challenges the court’s personal jurisdiction on the ground of improper service of process the burden is on the plaintiff to prove ... the facts requisite to an effective service.” (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413. Internal quotes omitted.) A proof of service by a registered process server establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return. (Evid. Code, § 647; see also *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 [filing of proof of service that complies with the applicable statutory requirements creates a rebuttable presumption of proper service].)

C. DISCUSSION

The operative Proof of Service (“POS”) of the summons and complaint, filed June 25, 2026, indicates that the registered California process server personally served copies of the documents on “Kenneth B Salomon” at 740 Chiles Avenue, St. Helena, CA 94574, on June 7, 2026, at 12:33 PM. (6/25/26 POS, §§ 3(a), 4.) The POS includes the following details about the person who was served: “**Gender:** MALE **Age:** 71-81 **Skin Tone:** WHITE **Hair:** BROWN/GRAY **Eye Color:** BROWN **Height:** 5FT 4IN - 5FT 7IN **Weight:** 171 LBS - 190 LBS.” (*Id.*, § 5(a). Emphasis in Original.)

Defendant presents evidence that: “[o]n June 7, 2026 a copy of the Summons and Complaint ... was wedged in the front door jamb [*sic*] of [his] residence”; “[He] was absent from [his] residence on June 7, 2026 [(“[he] ate lunch at Basque Boulangerie Café in Sonoma on June 7, 2026 at noon”)] and upon [his] return about 5:00 p.m. noticed said summons and complaint upon [his] return”; “[He is] 6 ft. 3 inches tall, ha[s] blue eyes, black hair, [is] 83 years old and weigh[s] 155 lbs.” (Declaration of Kenneth B. Salomon (“Salomon Decl.”), ¶¶ 2, 3, 5; see also Reply Declaration of Kenneth B. Salomon (“Reply Salomon Decl.”), ¶¶ 2-3, Exhs. A-B.)

² All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

In Opposition, Plaintiff argues that Defendant's self-serving declaration fails to overcome the presumption in favor of the POS because: (1) Defendant does not explain how the process server came into contact with someone matching Defendant's description if the service was not personal, (2) a bare claim that he was not personally served does not overcome a facially valid POS, and (3) small differences in physical description do not outweigh a sworn POS. (Opp., 4:17-5:5.)

In Reply, Defendant reasserts that the POS's physical description does not "match" Defendant, and emphasizes that the mischaracterizations are not "small differences." Thus, Defendant argues that his evidence is sufficient to defeat the POS.

"[I]f the notice was served by a registered process server [citation], plaintiff may take advantage of a statutory presumption: The registered process server's proof of service can be introduced as a business record [citation], thereby creating a presumption affecting defendant's burden of producing evidence. [Citations.] [¶] If defendant does not introduce rebuttal evidence, the trier of fact must find for plaintiff in accordance with the presumption. Conversely, the presumption is dispelled by defendant's introduction of rebuttal evidence, and the burden shifts back to plaintiff to put the person who served the notice on the stand to testify to proper service." (*Palm Property Investments, LLC v. Yadegar* (2011) 194 Cal.App.4th 1419, 1427.)

Here, the reasonable inference drawn from the POS's inclusion of Defendant's name as the party served, combined with a physical description of the person personally served is that the process server spoke with someone, with the physical characteristics described in the POS, who identified himself as Kenneth B Salomon at the residence on June 7 at 12:33 PM. This reasonable inference leads to a conclusion that Defendant was properly served via personal service.

However, the Court finds that Defendant has submitted evidence tending to show that he was not home at 12:33 PM on June 7 and that the description of the person "personally served" on June 7 is inconsistent with Defendant's physical characteristics. While the foregoing does not necessarily rebut the reasonable inference that the process server spoke with *someone* who identified himself as Defendant, it does rebut the conclusion that it was in fact *Defendant* who was personally served. As such, the Court may not merely accept the POS's indication of "personal service" on Defendant as true.

Because Plaintiff, in Opposition, solely relies upon its POS and the presumption in support thereof, Plaintiff offers no additional evidence from its process server to explain that the "personal service" complied with the code *as to Defendant*. For example, Plaintiff submits no evidence to (1) explain how the process server confirmed that the person being served was, in fact, Defendant; (2) show that the person matching the physical description in the POS was, perhaps, an authorized agent of Defendant (§ 416.90); or (3) dispute Defendant's contention that the paperwork was left outside of Defendant's plain view (see *Trujillo v. Trujillo* (1945) 71 Cal.App.2d 257, 260). As a result, Plaintiff has failed to meet its burden to establish proper service.

Based on the foregoing, the Motion is GRANTED.

DEFENDANT’S SPECIAL MOTION TO STRIKE SLAPP SUIT AND FOR ATTORNEY FEES AND COSTS

TENTATIVE RULING: Plaintiff’s special motion to strike the Complaint as a strategic lawsuit against public policy is **DENIED**. Plaintiff’s request to strike the Complaint based on the statute of limitations and/or the single publication rule, construed as a Motion for Judgment on the Pleadings, is also **DENIED**.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

1. Nature of Motion

Defendant Karen Scheuner (erroneously sued as Karen Coffy) specially moves, pursuant to California Code of Civil Procedure, section 425.16, for an order to strike the Complaint filed by Plaintiff RORE Manufacturing Inc., dba, Roof and Realm (RORE) in its entirety on grounds that the Complaint is a strategic lawsuit against public policy (SLAPP).

While not addressed in the Notice of Motion, Ms. Scheuner also contends, through the supporting memorandum (Support Memo), that RORE’s claims are barred by the statute of limitations and/or the single publication rule of Civil Code section 3425.3. RORE addresses these arguments through its Opposition. The Court construes these requests as a Motion for Judgment on the Pleadings.

2. Nature of Claims

It is undisputed that RORE is in the business of producing, delivering, and assembling prefabricated dwelling units for end-user consumers. Ms. Scheuner is a former customer of RORE’s. The gravamen of the Complaint is that RORE has suffered damage as a result of: (1) alleged publications, by Ms. Scheuner, “of multiple damaging and untrue statements about RORE on social media regarding her purchase and installation of the Home” (Complaint at ¶ 7); and (2) alleged communications, by Ms. Scheuner, of defamatory information (*id.* at ¶ 9.)

RORE asserts its counts under theories of defamation – trade libel / business disparagement, and intentional and negligent interference with prospective economic relations.

RORE also seeks Declaratory Relief regarding Ms. Scheuner’s right to continue publishing and communicating negative content about RORE.

B. SPECIAL MOTION TO STRIKE SLAPP

1. Legal Background

“The special motion to strike established in section 425.16 may be used to attack a cause of action if (1) the cause of action arises from ‘any act [by the defendant] in furtherance of the person’s right of petition or free speech under the United States or California Constitution,’ and (2) the defendant was exercising his or her right of free speech ‘in connection with a public issue.’ (Citation.) If the moving defendant establishes those two elements, the burden shifts to the plaintiff to establish there is a probability he or she will prevail on the cause of action.” (*Chabak v. Monroy* (2007) 154 Cal.App.4th 1502, 1511.)

“The anti-SLAPP statute’s definitional focus is not the form of the plaintiff’s cause of action but, rather, the defendant’s activity that gives rise to his or her asserted liability – and whether that activity constitutes protected speech or petitioning.” (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 92 (*Navellier*).)

2. Legal Analysis

a. *The Activity Giving Rise to RORE’s Claim(s) is Protected Activity Under the Statute*

As defined by the anti-SLAPP statute, protected activity includes “any written . . . statement . . . made in a place open to the public or a public forum in connection with an issue of public interest.” (Code Civ. Proc. § 425.16, subd. (e)(3) (Section 425.16).)

The alleged activities that give rise to the asserted liability, and that support RORE’s prayer for declaratory relief, are statements relating to RORE’s business of designing, fabricating and delivering ADUs. (See Complaint at ¶ 7, 11, and 17.) The statements were either published on social media or communicated directly to another of RORE’s customers. (See Complaint at ¶¶ 7, 9-12, 17, 23, 38, and 36.) As RORE concedes, the posts giving rise to its claims were all published “in the private Facebook group ‘How to ADU.’” (Opposition at 2:6-8.) Ms. Scheuner presents evidence that “[t]he Facebook Group . . . has approximately 160,000 members The Facebook Group is purposed for homeowners and ADU-builders ‘to help each other and share questions and answers about building Accessory Dwelling Units in California’” (See Declaration of Karen Scheuner at ¶ 12.) RORE does not dispute or rebut this evidence through its Opposition.

“[R]eviews posted to an Internet website meet [Section 425.16, subd. (e)(3)’s] definition of protected activity.” (*Abir Cohen Treyzon Salo, LLP v. Lahiji* (2019) 40 Cal.App.5th 882, 887-88 (*Lahiji*) [upholding trial court finding that comments posted to a website by a former client regarding quality of a law firm’s services were protected activity]; see also *Chaker v. Mateo* (2012) 209 Cal.App.4th 1138, 1146 (*Chaker*) [“statements posted to the Ripoff Report Web site

about [Plaintiff's] character and business practices plainly fall within in the rubric of consumer information about [Plaintiff's] business and were intended to serve as a warning to consumers about his trustworthiness"].)

“The public interest requirement of section 425.16, subdivision (e)(3) must be “construed broadly” so as to encourage participation by all segments of our society in vigorous public debate related to issues of public interest.’ [Citation.] The Legislature inserted the ‘broad construction’ provision out of concern that judicial decisions were construing that element of the statute too narrowly.” (*Gilbert v. Sykes* (2007) 147 Cal.App.4th 13, 23-24 (*Gilbert*) [held: a public website created by Plaintiff dedicated to the pros and cons of plastic surgery constitutes protected activity under Section 425.16, subdivision (e)(3) where “the Web site was not limited to attacking [plaintiff] but contributed to the general debate over the pros and cons of undergoing cosmetic surgery”].)

The Court finds that, particularly since the passage of SB 477 in 2024, legislation aimed at reducing the local zoning and planning hurdles to the construction of ADUs, subjects relating to the construction thereof are issues of significant public interest.

Based on the foregoing, the Court finds that the statements – allegedly made by Ms. Scheuner – giving rise to RORE’s claim(s) are protected activity pursuant to Section 425.16, subdivision (e)(3).

RORE argues that Ms. Scheuner’s statements are not protected under the holding in *Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624 (*Yang*). In *Yang* a celebrity jeweler posted statements regarding his dissatisfaction with a cake ordered from a local bakery to his social media feed with some 1.5 million followers. (See *id.* at 626-27.) In concluding that Defendant had not made the comments “in connection with an issue of ‘public interest,’” the *Yang* court found that “Yang’s statements did not seek public discussion of anything. They aimed to whip up a crowd for vengeful retribution. They were an unprotected effort ‘to gather ammunition’ in his spat with Big Sugar. The customer was complaining about a cake order. He did not like the cake and he did not like the service. Those were not issues of public interest.” (*Id.* at 632-633.)

Here, by contrast, the alleged statements were made on a social media site dedicated to a matter of public interest, discussion of ADUs in California – the precise business for which RORE holds itself out to the public. The Court finds that these facts distinguish the instant case from *Yang*, and bring it in line with the holdings in *Lahiji* and *Chaker*, cited above.

b. *RORE Has Shown a Probability of Prevailing on the Claim*

“[I]n order to establish the requisite probability of prevailing (§ 425.16, subd. (b)(1)), the plaintiff need only have “stated and substantiated a legally sufficient claim.” [Citations.]’ ‘Put another way, the plaintiff “must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.”’ [Citations.]” (*Navellier, supra*, 29 Cal.4th at 88-89.) “To show a probability of prevailing for purposes of section 425.16, a plaintiff must

make a prima facie showing of facts which would, if proved at trial, support a judgment in plaintiff's favor." (*Alpha & Omega Dev., LP v. Whillock Contracting, Inc.* (2011) 200 Cal.App.4th 656, 663 (*Alpha & Omega*)). Because the burden on the plaintiff is similar to the standard used in determining motions for summary judgment. "[t]he showing must be made through 'competent and admissible evidence.' [Citations.] Thus, declarations that lack foundation or personal knowledge, or that are argumentative, speculative, impermissible opinion, hearsay, or conclusory are to be disregarded." (*Gilbert, supra*, 147 Cal.App.4th at 26.)

In analyzing the second prong, "We consider "the pleadings, and supporting and opposing affidavits . . . upon which the liability or defense is based." [Citation.] However, we neither "weigh credibility, [nor] compare the weight of the evidence. Rather, [we] accept as true the evidence favorable to the plaintiff [citation] and evaluate the defendant's evidence only to determine if it has defeated that submitted by the plaintiff as a matter of law.'" [Citation.] If the plaintiff 'can show a probability of prevailing on any part of its claim, the cause of action is not meritless' and will not be stricken; 'once a plaintiff shows a probability of prevailing on any part of its claim, the plaintiff has established that its cause of action has some merit and the entire cause of action stands.' [Citation.]" (*Oasis W. Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 820.) Thus, where a plaintiff asserts a claim for relief, based on allegations of protected activity, but does so pursuant to several different legal theories (couched as different causes of action) then the plaintiff's demonstration of a probability of prevailing on one or more, but less than all, legal theories, is sufficient to sustain its burden on the second prong of the test as against an anti-SLAPP motion directed at the entire Complaint. (See *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 820 ["We shall consider the causes of action for breach of fiduciary duty, professional negligence, and breach of contract together, as all three claims are based on Goldman's alleged breach of his duties as former counsel to Oasis"].)

RORE represents that its first count is pled under a Trade Libel theory for which a two-year statute of limitations applies, and not a traditional Defamation theory, for which a one-year limitations period applies. (See Opposition at 3:14-256.) To prevail on its claim for trade libel, RORE must prove: (1) That Ms. Scheuner made a statement that would be clearly or necessarily understood to have disparaged the quality of RORE's products or services; (2) That the statement was made to a person other than RORE; (3) That the statement was untrue; (4) That Ms. Scheuner knew that the statement was untrue or acted with reckless disregard of the truth or falsity of the statement; (5) That Ms. Scheuner knew or should have recognized that someone else might act in reliance on the statement, causing RORE financial loss; (6) That RORE suffered direct financial harm because someone else acted in reliance on the statement; and (7) That Ms. Scheuner's conduct was a substantial factor in causing plaintiff's harm. (See Judicial Council of California Civil Jury Instruction No. 1731 (CACI).)

The Court finds that RORE has made the requisite showing, of a probability of prevailing on its trade libel theory based on those statements that Ms. Scheuner acknowledges having made. (see Declaration of Karen Scheuner at ¶¶ 13-17, and Exhs. K and M (Scheuner Decl.)) The Court finds the foregoing evidence sufficient to make the requisite showing as to the first (disparaging statement), second (to a third party), and fifth (recognition that third party might react) elements of the claim. Paragraph 28 of the Declaration of Fatima Shahid (Shahid Decl.) is sufficient to make the requisite showing as to the third (falsity) element. The Court finds that,

because the statements all relate to aspects of Ms. Scheuner's own ADU project that she was involved with, the evidence presented is sufficient to create a reasonable inference that Ms. Scheuner was aware that her statements were false, or acted with reckless disregard of the truth when she made them, satisfying, for purposes of the instant motion, the fourth element. (See *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 822 ["[T]he proper inquiry in the context of an anti-SLAPP motion 'is whether the plaintiff proffers sufficient evidence for such an inference'"].) Finally, the Court finds that paragraphs 31-33, 34, and 37 of the Shahid Decl. are sufficient to make the requisite showing as to the fifth (damage) and sixth (causation) elements.

To be clear, the Court finds only that the evidence produced by RORE, and the reasonable inferences therefrom, when presumed true, are sufficient to "show a probability of prevailing for purposes of section 425.16 . . ." (*Alpha & Omega, supra*, 200 Cal.App.4th at 663.)

Because the Court finds that RORE has established that its claims for relief based on Ms. Scheuner's posted statements have some merit, Ms. Scheuner's motion to strike the Complaint, in its entirety, based on the anti-SLAPP statute, is DENIED. (*Oasis W. Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 820; See also *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396 [held: "cause of action" as used in Section 425.16 means "claims for relief that are based on allegations of protected activity"].)

C. MOTION FOR JUDGMENT ON THE PLEADINGS

"A general demurrer will lie 'where the complaint has included allegations that clearly disclose some defense or bar to recovery.' [Citation.]" (*Cryolife, Inc. v. Super. Ct.* (2003) 110 Cal.App.4th 1145, 1152.) And "a motion to strike is generally used to reach defects in a pleading which are not subject to demurrer. A motion to strike does not lie to attack a complaint for insufficiency of allegations to justify relief; that is a ground for general demurrer." (*Pierson v. Sharp Mem'l Hosp.* (1989) 216 Cal.App.3d 340, 342 (*Pierson*); see also (Weil & Brown, Cal. Practice Guide – Civ. Pro. Before Trial (Rutter 2026) CH. 7(I)-B, § 7:156 ["Motions to strike can be used to reach defects in or objections to pleadings *that are not challengeable by demurrer*"], and *Allerton v. King* (1929) 96 Cal.App.230, 234 [held: A motion to strike cannot be made to serve the purpose of a special demurrer].)

However, the Court may construe a motion to strike for failure to state a claim as a motion for judgment on the pleadings. [See *Pierson, supra*, 216 Cal.App.3d at 342-343.] The Court, therefore, construes Ms. Scheuner's Motion to Strike on grounds that RORE's claims are barred by the statute of limitations and/or the single publication rule as a Motion for Judgment on the Pleadings.

"Because a motion for judgment on the pleadings is the functional equivalent of a general demurrer, the same rules apply." (*Hightower v. Farmers Insurance Exchange* (1995) 38 Cal.App.4th 853, 858.) A motion for judgment on the pleadings is therefore treated as "admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court must "construe the allegations of a complaint liberally in favor of the pleader." (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) Court must also accept as true facts that may be inferred from those

expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) The Court may also consider as grounds for granting the motion any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code. Civ. Proc., § 430.30, subd. (a).) Because the motion tests “only the legal sufficiency of the pleading...the question of plaintiff’s ability to prove the[] allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Comm. on Children’s Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14.)

A defendant is entitled to judgment on the pleadings if the allegations of the complaint clearly disclose some defense to the claim. (See *Hunt v. County of Shasta* (1990) 225 Cal.App.3d 432, 441.) “[A motion for judgment on the pleadings] based on [an affirmative defense] will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar . . . to be raised by [motion for judgment on the pleadings], the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred. [Citation.]’ [Citation.]” (*Geneva Towers Ltd. Partnership v. City and County of San Francisco* (2003) 29 Cal.4th 769, 781.)

1. The Claims Are Not Clearly Barred by the Statute of Limitations

“With respect to the choice between the one-year period of section 340, subdivision (3), and the two-year period of section 339, subdivision 1, ‘[the] principle of selection which has emerged is that the one-year period applies to all alleged infringements of personal rights, whereas the two-year period applies only to alleged infringements of property rights. [Citations.]’” (*Guess, Inc. v. Super. Ct.* (1986) 176 Cal.App.3d 473, 478.) “Whereas defamation concerns injury to the reputation of a person or business, trade libel involves false disparagement of the quality of goods or services.” (*Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App.4th 328, 340.)

The Court finds that the Complaint contains allegations sufficient to support a claim for defamation based on infringement of property rights. As such, Ms. Scheuner fails to persuade the Court that the claims, or any of them, are clearly barred by the statute of limitations.

2. The Claims are Not Clearly Barred by the Single Publication Rule

“No person shall have more than one cause of action for damages for libel or slander or invasion of privacy or any other tort founded upon any single publication or exhibition or utterance, such as any one issue of a newspaper or book or magazine or any one presentation to an audience or any one broadcast over radio or television or any one exhibition of a motion picture. Recovery in any action shall include all damages for any such tort suffered by the plaintiff in all jurisdictions.” (Civil Code § 3425.3.)

Ms. Scheuner suggests that because all of the causes of action asserted against her in the Complaint (defamation, declaratory relief, and intentional and negligent interference) arise out of the same online publications, RORE’s claims should be “limited to a single cause of action for alleged Libel/Defamation. (Support Memo at 4:1-6.) The argument appears to reflect a

misunderstanding of the single publication rule. Specifically, it appears based on the wrong use of the phrase “cause of action.”

The single publication rule’s reference to “cause of action” is akin to that under the primary rights theory; “The violation of one primary right constitutes a single cause of action, though it may entitle the injured party to many forms of relief, and the relief is not to be confounded with the cause of action, one not being determinative of the other.” (*Wulfjen v. Dolton* (1944) 24 Cal.2d 891, 895-96.) Thus, the single publication rule does not bar a plaintiff from asserting a claim – based on a single violation of a primary right – under several different legal theories. Rather, it serves to alter the common law principal “that each communication of a defamatory remark to a new audience constitutes a separate ‘publication,’ giving rise to a separate cause of action, [which] led to the conclusion that each sale or delivery of a copy of a newspaper or book containing a defamation also constitutes a separate publication of the defamation to a new audience, giving rise to a separate cause of action for defamation.” (*Shively v. Bozanich* (2003) 31 Cal.4th 1230, 1243-1244.)

Ms. Scheuner fails, therefore, to persuade the Court that RORE’s claims, or any of them, are barred by the single publication rule.

.....

In The Matter of Allison Busse

26CV000841

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

.....

Bryan Vu v. Edward Erik Eriksson

26CV001045

SPECIAL MOTION TO STRIKE

TENTATIVE RULING: The motion is GRANTED IN PART. The second, third, fourth, and fifth causes of action are stricken from the Complaint pursuant to Code of Civil Procedure section 425.16. Paragraphs 14, 15, 16, and 18 of the Complaint are stricken pursuant to Code of Civil Procedure section 436, subdivision (a).

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court *or* emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of

hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendant Edward Erik Eriksson III moves, pursuant to Code of Civil Procedure section 425.16 (Section 425.16), for an order striking: “The Second Cause of Action (Wrongful Attachment), the Third Cause of Action (Wrongful Denial of Civil Due Process), the Fourth Cause of Action (Intentional Infliction of Emotional Distress), and the Fifth Cause of Action (Negligent Infliction of Emotional Distress), each in its entirety; and [t]he protected-activity allegations within the First Cause of Action (Conversion) and the Sixth Cause of Action (Financial Abuse of a Dependent Adult), specifically paragraphs 14 through 16 and 18 through 19 of the Complaint wherever incorporated into those causes of action The Second, Third, Fourth, and Fifth Causes of action in their entirety.” (Notice of Motion at 2:2-9.)

A. LEGAL BACKGROUND

“The special motion to strike established in section 425.16 may be used to attack a cause of action if (1) the cause of action arises from ‘any act [by the defendant] in furtherance of the person’s right of petition or free speech under the United States or California Constitution,’ and (2) the defendant was exercising his or her right of free speech ‘in connection with a public issue.’ (Citation.) If the moving defendant establishes those two elements, the burden shifts to the plaintiff to establish there is a probability he or she will prevail on the cause of action.” (*Chabak v. Monroy* (2007) 154 Cal.App.4th 1502, 1511.) “The anti-SLAPP statute’s definitional focus is not the form of the plaintiff’s cause of action but, rather, the defendant’s activity that gives rise to his or her asserted liability – and whether that activity constitutes protected speech or petitioning.” (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 92 (*Navellier*)).

“[A] complaint is not a SLAPP suit unless the gravamen of the complaint is that defendants acted wrongfully by engaging in the protected activity.” (*Drell v. Cohen* (2014) 232 Cal.App.4th 24, 30.) “[T]he mere fact that an action was filed after protected activity took place does not mean the action arose from that activity for the purposes of the anti-SLAPP statute. [Citation.] Moreover, that a cause of action arguably may have been ‘triggered’ by protected activity does not entail that it is one arising from such. [Citation.] In the anti-SLAPP context, the critical consideration is whether the cause of action is based on the defendant’s protected free speech or petitioning activity. [Citations.]” (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 89 (*Navellier*)).

B. LEGAL ANALYSIS

1. The Motion is GRANTED as to Strike the Second Through Fifth Causes of Action

Mr. Eriksson asserts that “[e]very count addressed in this motion is built on the same protected conduct: Eriksson’s pre litigation demand that a bank freeze the disputed accounts, Eriksson’s petition to a court to recover them, the interpleader that Eriksson’s petition produced, and his recording of a statutorily authorized notice of pending action.” (Support Memo at 5:4-8.)

The Court finds that Mr. Vu's second through fifth causes of action are clearly based on the demand, by Eriksson's counsel, to freeze the decedent's assets, and the recording of the lis pendens relating to the Sacramento Superior Court action.³ (See, *e.g.*, Complaint at ¶¶ 14, 16, 18, 26, 36, and 39.)

“[C]ommunications in connection with anticipated litigation are considered to be ““under consideration or review by a . . . judicial body.”” [Citation.]” (*Neville v. Chudacoff* (2008) 160 Cal.App.4th 1255, 1263.) “[A]lthough litigation may not have commenced, if a statement ‘concern[s] the subject of the dispute’ and is made ‘in anticipation of litigation “contemplated in good faith and under serious consideration” ‘ [citations] then the statement may be petitioning activity protected by section 425.16.” (*Neville v. Chudacoff* (2008) 160 Cal.App.4th 1255, 1268 [73 Cal.Rptr.3d 383].)

Here, Mr. Vu alleges that “[t]en days after Decedent’s passing, Defendant, by and through counsel, sent a letter to Susan Davis, Decedent’s financial advisor at JP Morgan Wealth Management (JPMS), demanding that all of Decedent’s accounts held at JPMS be frozen *in anticipation of litigation* by Defendant claiming he held a community property interest in the accounts.” (Complaint at ¶ 14. *Italics added.*) Moreover, a lis pendens is, by its very nature, a communication made in connection with litigation.

Moreover, Mr. Vu, by failing to file any opposition to the Motion, appears to concede that the activities underlying their causes of action are protected activities pursuant to Section 425.16.

Based on the foregoing, the Court finds that Mr. Eriksson has satisfied his initial burden.

As noted above, once the moving defendant satisfies his initial burden, “the burden shifts to the plaintiff to establish there is a probability he or she will prevail on the cause of action.” (*Chabak v. Monroy, supra*, 154 Cal.App.4th at 1511.) Mr. Vu failed to file anything by way of opposition to the instant Motion. As such, he fails to establish such probability.

Based on the foregoing, the Motion is GRANTED as to the second through fifth causes of action.

2. The Court orders the Individual Allegations Stricken Pursuant to Code of Civil Procedure Section 436

Mr. Eriksson also asks the Court to strike “[t]he protected-activity allegations within the First Cause of Action (Conversion) and the Sixth Cause of Action (Financial Abuse of a Dependent Adult), specifically paragraphs 14 through 16 and 18 through 19 of the Complaint wherever incorporated into those causes of action. (Notice of Motion at 2:6-10.)

³ It is not apparent, to the Court, that any of Mr. Vu’s second through fifth causes of action are based on “Eriksson’s petition to a court to recover them [or] the interpleader that Eriksson’s petition produced . . .” (Support Memo at 5:4-8.) However, as these activities are clearly protected activities under Section 425.16, the question appears academic.

Again, “a complaint is not a SLAPP suit unless the gravamen of the complaint is that defendants acted wrongfully by engaging in the protected activity.” (*Drell v. Cohen* (2014) 232 Cal.App.4th 24, 30.) For purposes of anti-SLAPP analysis, a “so-called ‘mixed cause of action’...combines allegations of activity protected by the statute with allegations of unprotected activity.” (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 381-82 (*Baral*)). A special motion to strike may properly be granted as against the claims based on allegations of protected activity, even though such ruling does not dispose of an entire cause of action. (See *ibid.*)

First, the Court does not find that paragraph 19 is limited to allegations of protected activity. Rather, its reference to “Defendant’s actions as herein alleged” includes the acts alleged in paragraph 13. Mr. Eriksson does not argue that these alleged acts constitute protected activity under the anti-SLAPP statute. As such, the Court finds no grounds for striking paragraph 19, which alleges *consequences* arising from these various acts.

Moreover, it does not appear to the Court that the allegations of paragraphs 14 through 16 and 18 can, as a matter of law, support either the first or sixth causes of action.

“Essential elements” of a claim for conversion are that the defendant “exercised dominion over the [personal property] and converted them to his own use.” (*Shopoff & Cavallo LLP v. Hyon* (2008) 167 Cal.App.4th 1489, 1507.) It thus does not appear that Mr. Vu *could* ground a claim for conversion on any of the protected activities discussed above because those activities do not involve his exercising dominion over the respective properties or converting either of them to this own.

As to the elder abuse claim, the Complaint alleges that Julie Huong Vu died on January 1, 2026. (See *id.* at ¶ 8.) It alleges that the subject letter from counsel freezing assets was sent “[t]en days after Decedent’s passing.” (*Id.* at ¶ 14.) Similarly, Mr. Vu alleges that the Sacramento action was filed on February 19, 2026, and that the lis pendens relating thereto was filed “upon Defendant’s filing of his Petition and Complaint.” (*Id.* at ¶¶ 15-16.) Thus, Mr. Vu explicitly alleges that all of the protected activities alleged occurred *after* Ms. Huong Vu passed away.

The Court is aware of no authority providing that an estate may maintain a claim for elder abuse based on allegations that a defendant took, secreted, appropriated, obtained, or retained real or personal property of an elder *after* the elder’s death. (See *Ring v. Harmon* (2021) 72 Cal.App.5th 844, 851.) [“No authority supports the notion that the personal representative of a probate estate, acting in that capacity, has standing to bring an elder abuse claim on behalf of a beneficiary of that estate”].)

Based on the foregoing, Mr. Eriksson fails to show that either the second or sixth cause of action arises out of the protected activities. For this reason, the Court does not have authority to strike paragraphs 14, 15, 16, and/or 18 pursuant to Section 425.16,

However, in light of the Court’s ruling granting Mr. Eriksson’s motion to strike the second through fifth causes of action, the finding that these allegations cannot, as a matter of law, support the first or sixth causes of action, renders the allegations irrelevant. While the Court does not have authority to strike paragraphs 14, 15, 16, and/or 18 pursuant to Section 425.16, it does

have authority to strike them pursuant to Code of Civil Procedure section 436 on grounds that they are irrelevant.

.....
In The Matter of Courtney Alohalani Robinson

26CV001137

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

.....
****at 9:30 a.m.****

Leo Brajkovich v. LMR Destinations LLC et al

25CV001311

MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT,
CONDITIONAL CERTIFICATION, APPROVAL OF CLASS NOTICE, SETTING OF FINAL
APPROVAL HEARING DATE

TENTATIVE RULING: The motion for preliminary approval of class action settlement is GRANTED. The Court will sign the proposed order. The matter is set for a Final Approval Hearing on December 9, 2026, at 8:30 a.m. in Dept. B. The August 6, 2026 OSC re Dismissal is VACATED.